

26TRCV01513 26TRCV01513

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C07%2F13%2F2026

Source SHA-256: 7be627e9e5f57e3c585ebc200f18a9f5c8d1bd70e10dcec27f5417b855597345

Case Number: 26TRCV01513 Hearing Date: July 13, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

KERRY

TAYAG, INDIVIDUALLY AND AS

ADMINISTRATOR

OF THE ESTATE OF CHRISTOPHER TAYAG

Plaintiffs,

Case No.:

26TRCV01513

vs.

[Tentative]

Sustained

ROBINSON

HELICOPTER, CO.; and DOES 1 through 50, inclusive;

Defendants.

Hearing

Date: July 13, 2026

Moving Parties: Defendant Robinson Helicopter Company

Responding Party: Plaintiff Kerry Tayag

HEARING: Demurrer

The Court considered the moving,
opposition, and reply papers.

RULING

The
Court sustains the Demurrer with leave to amend.

BACKGROUND

On April
27, 2026, Plaintiff Kerry
Tayag filed the Complaint against Defendant Robinson Helicopter Co. alleging
causes of action for survivor's action, wrongful death, and strict products
liability.

On June 15, 2026, Defendant filed
the Demurrer.

On June 29, 2026, Plaintiff filed
the Opposition.

On July 6, 2026, Defendant filed the
Reply.

LEGAL STANDARD

A demurrer can be
used only to challenge defects that appear on the face of the pleading under

attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

JUDICIAL NOTICE

The

Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).) Last, the Court may take judicial notice of "facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code § 452 subd. (h).)

Plaintiff requests that the Court take judicial notice of Tayag v. Robinson Helicopter Co., Inc., Case No. 3:24-cv-01023-FDW-DCK, U.S. District Court for the Western District of North Carolina.

The Court grants these requests pursuant to the Evidence Code section 452 subdivision (d).

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On June 15, 2026, the parties met and conferred on a video call regarding the Demurrer. Thus, the Court finds that Defendant has satisfied the meet and confer requirements.

On November 22, 2022, Christopher Tayag was killed when the Robinson Model R44 helicopter he was piloting crashed onto the southbound side of Interstate 77 in Charlotte, North Carolina, between Tyvola Road and Nations Ford Road.

On April 27, 2026, Plaintiff Kerry Tayag, Mr. Tayag's wife, filed suit individually and as Administrator of the Estate of Christopher Tayag against Defendant Robinson Helicopter Company, the manufacturer of the subject helicopter. Plaintiff is a citizen of South Carolina, and Defendant is a California corporation with its principal place of business in Los Angeles, California.

Defendant demurs to the Complaint.

Statute of Limitations

Defendant argues California's borrowing statute, Code of Civil Procedure section 361, requires application of North Carolina's statutes of limitations because the cause of action arose in North Carolina, where the flight originated, and the accident occurred. Defendant further argues that under North Carolina law, wrongful

death claims may only be brought by the personal representative of the estate and are subject to a two-year statute of limitations running from the date of death. Because Mr. Tayag died on November 22, 2022, and the Complaint was not filed until April 27, 2026, Defendant contends the estate's wrongful death claims are untimely by well over a year. Defendant also notes that under North Carolina law, a widow has no individual right of action for the death of her spouse, and that all claims seeking damages for or on account of death or personal injury caused by a product constitute products liability claims under North Carolina General Statute section 99B-1(3) and are subject to a three-year limitations period. Defendant contends Plaintiff's individual claims for mental pain and suffering and personal injury accrued at the time of Mr. Tayag's death, and that the three-year deadline of November 22, 2025, likewise passed before the complaint was filed.

Defendant also

argues that even if the Court finds Plaintiff's claims timely under North Carolina law, California's own two-year statute of limitations under Code of Civil Procedure section 335.1 independently bars all claims, as California has a strong interest in protecting its resident defendant from stale claims and the complaint was not filed within two years of Mr. Tayag's death.

In opposition, Plaintiff

argues the demurrer should be overruled, or alternatively, the proceedings should be stayed pending resolution of the appeal currently before the United States Court of Appeals for the Fourth Circuit in *Kerry Tayag v. Robinson Helicopter Company*, Case No. 26-1549, which involves the same defendant and operative facts and whose resolution may narrow or moot the issues underlying the demurrer.

Plaintiff contends

all claims are equitably tolled by the timely filing of the federal action in the Western District of North Carolina within the two-year wrongful death statute of limitations, asserting the same allegations of defects and product liability against Defendant. Plaintiff argues equitable tolling applies because all three required elements are satisfied: Defendant received timely notice of the claims through the federal action in which it appeared, conducted jurisdictional discovery, and litigated a contested motion to dismiss; Defendant suffers no prejudice; and Plaintiff acted reasonably and in good faith by promptly filing this California action on April 27, 2026, within approximately one month of the federal court's March 26, 2026 dismissal for

lack of personal jurisdiction.

“When a cause of action has arisen in another State, or in a foreign country, and by the laws thereof an action thereon cannot there be maintained against a person by reason of the lapse of time, an action thereon shall not be maintained against him in this State, except in favor of one who has been a citizen of this State, and who has held the cause of action from the time it accrued.” (Code Civ. Proc., § 361.) A wrongful death suit brought in North Carolina has a two-year statute of limitations. (N.C. Gen. Stat. § 1-53 subd. (4).) Products liability claims in North Carolina have a three-year statute of limitations. (N.C. Gen Stat. § 1-52 subd. (5).)

Here, the incident occurred on November 22, 2022, and the Complaint was filed on April 27, 2026. Thus, the Complaint is untimely. Regarding Plaintiff’s equitable tolling argument, while equitable tolling may be available, Plaintiff has not pleaded it in her Complaint. Last, while Plaintiff has requested that the Court continue the hearing and stay the action pending a decision in *Tayag v. Robinson Helicopter Co., Inc.*, Case No. 3:24-cv-01023-FDW-DCK, U.S. District Court for the Western District of North Carolina, Plaintiff has not explained how the federal court’s ruling would affect the statute of limitations issues.

Therefore, the Court sustains the Demurrer with leave to amend.